

UNPAID MEAL DEBT

The National School Lunch and School Breakfast Programs ensure that students have access to nutritious meals to support academic readiness. It is imperative to protect the financial stability of the School Nutrition Program (SNP). The intent of this policy is to establish expectations regarding communication with parents or legal guardians of students whose accounts have insufficient funds to pay for school meals and to outline fiduciary responsibility.

A. Definitions.

1. Delinquent Debt. Delinquent debt in the School Nutrition Program (SNP) refers to unpaid meal charges that are past their due date. While delinquent debt is permitted within the SNP, it remains classified as delinquent until it is determined to be uncollectible.

2. Bad Debt. Bad debt refers to delinquent debt that is deemed uncollectible and is not allowed within the School Nutrition Program (SNP).

B. Communicating the Unpaid Meal Debt Policy. The written meal debt policy will be published and communicated in a variety of ways per federal law.

1. Student meal account expectations are communicated to parents or legal guardians annually via the First Day Information and Student Rights and Responsibilities Handbook for Families.

C. Fiduciary Responsibility.

1. Parents or legal guardians are responsible for all student meal expenses and are expected to pay all meal debts in full.

2. Students from households not qualified for free or reduced price meals are expected to provide payment for student meals at the time of service.

3. Students from households whose income is at or below federally designated financial levels may apply for free or reduced price meals.

a. Students with an approved free or reduced meal application, direct certified students, and students attending Community Eligibility Provision (CEP) schools receive free meals and do not incur any meal debt.

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4. Students whose accounts have insufficient funds:
 - a. Will not be turned away from receiving the meal of their choice from the advertised school menu. Meal options will not be charged, withheld, or taken from a student with zero or negative balance.
 - b. Will not be allowed to incur debt for a la carte items. (items available for purchase such as chips, beverages, additional entrees, additional meals, etc).

5. When a student's meal account reaches a delinquency of \$5.00 or more, a student's parent or legal guardian is notified via email, text, phone, and mail in ADA accessible format. The communication is also available in multiple languages.

6. Employees may not require a student who cannot pay for a meal at school, or who owes a school meal debt, to throw away or discard a meal after it has been served to the student, do chores or other work to pay for such meals, or wear a wristband or hand stamp. Employees may not apply any method to publicly identify a child as someone who cannot pay for a meal or who owes a school debt.

7. Adults shall pay for meals at the time of service.

8. The school board may not file lawsuits against a student or a student's parent or legal guardian because the student cannot pay for a meal at school or owes a school meal debt.

9. Neither the school board nor any employee of the school board will deny any student the opportunity to participate in extracurricular activities because the student cannot pay for a meal at school or because they owe a school meal debt.

D. Notifying Households of Low and/or Negative Balances in Student's Accounts.
No communication is allowed directly with students and reasonable efforts will be used to avoid calling attention to a student's inability to pay. When a student account reaches a low or negative balance communication shall be made directly to the student's parent or legal guardian. Such communication will provide notice of the student's low or negative balance in their meal account, and it will reference the unpaid meal debt policy. Parents or legal guardians are expected to pay all meal charges in full by the last day of the school year.

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E. Debt Resolution.

1. At the end of the school year:
 - a. After SNP delinquent debt is deemed uncollectible, it is converted to bad debt.
 - b. Federal SNP funds may not be used to subsidize bad debt.
 - c. All unpaid school meal balances will be funded by using appropriated non-federal funds.

2. The School Board may solicit and receive restricted donations or other funds for the express purpose of eliminating or offsetting any school meal debt at any time and will use any such funds solely for such purpose.

Adopted: 1/22/19

Revised: 11/30/21, 1/10/23

Current Revision: 5/20/25

Legal Refs: Code of Federal Regulations Part 200 Section 143 of [Healthy Hunger Free Kids Act, 2010](#), Code of Virginia § [22.1-79.7](#), [§ 22.1-79.7](#):